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County: los-angeles

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Case Number: 26STCP01270 Hearing Date: August 20, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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OSNI HUMBERTO VALENCIA,

Petitioner(s),

vs.

COUNTY

OF LOS ANGELES, et al.,

Respondent(s).

Case No.:

26STCP01270

Hearing Date:

August 20, 2026

[TENTATIVE]

ORDER RE: DEMURRER

Respondents County of Los Angeles ("County") and Los Angeles County Department of Public Social Services ("Department") (collectively, "Respondent") demur to petitioner Osni Humberto Valencia's ("Petitioner") First Amended Verified Petition ("FAP").

The demurrer is sustained with leave to amend in part.

I.

Factual Allegations

On April 30, 2026, Petitioner filed the FAP against Respondent stating causes of action for (1) writ of mandate (Code of Civil Procedure ["CCP"] §§ 1085-1086); (2) injunctive relief (CCP §§ 526-527); (3) declaratory relief (CCP § 1060); (4) quantum meruit / accrued earned compensation (Welfare & Institutions Code ["WIC"] §§ 12300 et seq., Civil Code §§ 3517, 3287(a)-(b)); (5) mandatory duty (Gov. Code § 815.6); (6) ADA Title II, § 504 (42 U.S.C. § 12132; 29 U.S.C. § 794); (7) 42 U.S.C. section 1983 (Fourteenth Amendment); (8) 42 U.S.C. section 1983 (Federal Medicaid Act); and (9) sanctions (CCP §§ 128(a)(5), 128.7, 177.5) and punitive damages (Civ. Code § 3294). The FAP alleges in pertinent part as follows.

Petitioner is the son of and sole caregiver to Humberto Valencia Rodriguez ("Rodriguez"). (Pet. at 4.)

In September 2003, Rodriguez received a deceased donor renal transplant. (FAP at 7.) As of October 10, 2023, Rodriguez has no functioning native kidneys. (FAP at 7.) On August 22, 2025, a Kidney Education Program Referral issued confirming Rodriguez would imminently progress to dialysis dependency. (FAP at 8.) Rodriguez had severe metabolic acidosis. (FAP at 9.) Rodriguez is near-totally blind in his right eye. (FAP at 6.) Rodriguez has diabetes. (FAP at 5.) In total, Rodriguez takes 33 medications necessary to preserve his life. (FAP at 5, 7.)

Due to his conditions, Petitioner has provided Rodriguez continuous supervision since October 9, 2023. (FAP at 7.) Rodriguez requires 282 hours of protective supervision monthly. (FAP at 8, Exs. B.)

On October 1, 2025, Petitioner submitted a complete In-Home

Supportive Services ("IHSS") application ("Application"), which included documentation of these conditions as well as proof of residency. (FAP at 9.) On October 23, 2025, Petitioner submitted a complete SOC 426 Provider Enrollment application by certified mail. (FAP at 9, Ex. D.)

Respondent had not responded to the application by November 14, 2025. (FAP at 9.) On December 1, 2025, Respondent staff arrived unannounced at Petitioner's permanent mailing address. (FAP at 10.) On January 7, 2026, Respondent issued a Notice of Action denying IHSS benefits to Rodriguez on the basis that "you have not told the county where you are currently living." (FAP at 11, Ex. N.) The Notice of Action included Petitioner's mailing address which was his residential address and the place Respondent staff visited Petitioner. (FAP at 11.)

II.

Procedural History

Petitioner filed his Verified Petition for Writ of Mandate and Complaint for Injunctive and Declaratory Relief ("Petition") against Respondent on March 30, 2026. There is no proof of service on file. On April 1, 2026, Respondent filed its opposition to an ex parte application by Petitioner. On April 2, 2026, Respondent appeared and opposed another ex parte application by Petitioner.[1] On April 13, 2026, County and Department each filed a Declaration of Demurring Party in Support of Automatic Extension stating counsel required time to evaluate the record and confer with Petitioner before filing a demurrer to the Petition.

On April 30, 2026, Petitioner filed the FAP. On May 27, 2026, County and Department each filed a Declaration of Demurring Party in Support of Automatic Extension stating counsel required time to evaluate the record and confer with Petitioner before filing a demurrer to the FAP. On June 16, 2026, Petitioner filed a document titled "Notice of Lodging Supplemental Verification, Ratification, Joinder, and Capacity Clarification Declarations" (sic).

On June 18, 2026, Respondent demurred to the FAP. On August 7, 2026, Petitioner filed his opposition to Respondent's demurrer. On August 12, 2026, Respondent filed its reply.

III.

Legal Standard

A demurrer tests the legal sufficiency of the pleading alone and will be sustained where the pleading is defective on its face.

A demurrer may be asserted on any one or more of several grounds, including, among others: (a) the court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) the person who filed the pleading does not have legal capacity to sue; (c) there is another action pending between the same parties on the same cause of action; (d) there is a defect or misjoinder of parties; (e) the pleading does not state facts sufficient to constitute a cause of action; and (f) the pleading is uncertain ("uncertain" includes ambiguous and unintelligible). (CCP §430.10.) Accordingly, a demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP §430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94); it does not include inadmissible hearsay. (*Day v. Sharp*, (1975) 50 Cal.App.3d 904, 914.)

The sole issue on demurrer for failure to state a cause of action is whether the facts pleaded, if true, would entitle the plaintiff to relief. (*Garcetti v. Superior Court* (1996) 49 Cal.App.4th 1533, 1547 [*"Garcetti"*]; *Limandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.) The question of plaintiff's ability to prove the allegations of the complaint or the possible difficulty in making such proof does not concern the reviewing court. (*Quelimane Co. v. Stewart Title Guaranty Co.*, (1998) 19 Cal.4th 26, 47.) The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (*Marshall v. Gibson, Dunn & Crutcher*, (1995) 37 Cal.App.4th 1397, 1403 [*"Marshall"*].) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates*, (1995) 36 Cal.App.4th 698, 709 [*"Vance"*].)

IV.

Analysis

Respondent demurs to each cause of action in the FAP.

1.

Petitioner Lacks Standing

Respondent demurs to each cause of action in the FAP on the basis that Petitioner cannot assert claims on behalf of Rodriguez and has no standing in his own capacity.

Respondent is correct. Petitioner cannot assert claims on behalf of Rodriguez. He cannot represent Rodriguez, as such representation would be illicit practice of law without an active license of the State Bar. (Bus. & Prof. Code § 6125.) Petitioner has no standing on his own, as all rights alleged in the FAP belong to Rodriguez, not to Petitioner. Petitioner does not argue otherwise.

Petitioner does, however, assert that such defect is curable by amendment. As the Supreme Court observed in *Branick v. Downey Savings & Loan Assn.*, (2006) 39 Cal.4th 235 (“*Branick*”), “courts have permitted plaintiffs who have been determined to lack standing, or who have lost standing after the complaint was filed, to substitute as plaintiffs the true real parties in interest.” (*Branick* at 243.)

In reply, Respondent argues that *Branick* does not permit a non-attorney to sign, verify, and argue a pleading for an unrepresented party.

Respondent is correct with respect to the practical representation issues presented by the petition in its current form.[2] However, those issues are not necessarily a basis to sustain a demurrer without leave to amend, because Petitioner is correct that the standing defect can be cured.

Having resolved the question of whether Petitioner may assert Rodriguez’s rights—he may not—the next question for the Court on demurrer is whether the pleadings can be amended to correct the legal deficiencies. While a petitioner has the burden to establish how the pleadings can be amended to state a valid cause of action, the Court must grant leave to amend if there is a reasonable possibility the petitioner can so do. (*Jensen v. Home Depot* (2018) 24 Cal.App.5th 92, 97, citing *Smith v. State Farm Mutual Automobile*

Ins. Co (2001) 93 Cal.App.4th 700, 711 and Sanowicz v. Bacal (2015) 234 Cal.App.4th 1027, 1044.) The standing deficiency here can be corrected by substituting a petitioner with standing (presumably, Rodriguez). "Amendments for this purpose are liberally allowed." (Branick at 243, citing Klopstock v. Superior Court (1941) 17 Cal.2d 13, 20.)

Thus, while Petitioner lacks standing, the defect is curable by amendment.

Because Petitioner lacks standing, the Court need not reach the additional issues raised by Respondent, as Petitioner is not entitled to assert any of the pleaded causes of action.[3]

V.

Conclusion

Petitioner lacks standing to pursue any of the causes of action. The demurrer based on standing is SUSTAINED with leave to amend. Any amended petition must be filed within fourteen (14) calendar days of this order.

The Trial Setting Conference is premature, and therefore continued to September 24, 2026 at 9:30 a.m.

Moving party is ordered to give notice.

Date: August 11, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email

to the court at with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Petitioner first applied ex parte for a temporary restraining order (“TRO”) to be heard April 1, 2026. Petitioner failed to appear, and the Court took the application off calendar. Petitioner filed a second application the same day, to be heard April 2, 2026. On April 2, 2026, the Court denied Petitioner's ex parte application for a TRO.

[2]

Any questions regarding future attempts by Valencia, a non-attorney, to represent Rodriguez in court are not before the Court and are beyond the scope of this motion. The Court simply notes that litigants must either represent themselves (i.e., appear, prosecute/defend, argue, and manage their own case directly) or appear through counsel admitted to practice in California. Non-lawyer representation of parties in court is prohibited.

[3]

This determination should not be construed as indicating that an amended petition filed by a petitioner with standing would necessarily withstand demurrer on the other grounds raised by Respondent.